

NovaTech Solutions Pvt. Ltd.

VENDOR AGREEMENT

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Effective Date: 01 January 2026

Department: Procurement & Legal

Classification: Confidential

1. PARTIES

1.1 Agreement

This Vendor Agreement ("Agreement") is entered into between NovaTech Solutions Pvt. Ltd. ("Company") and the Vendor identified in the applicable Purchase Order or Statement of Work.

1.2 Purpose

The purpose of this Agreement is to establish the terms governing the supply of products and services by the Vendor.

2. SERVICES

2.1 Scope of Services

The Vendor shall provide the products and/or services described in the applicable Purchase Order or Statement of Work.

2.2 Standards

Services shall be performed professionally, diligently, and in accordance with industry best practices.

2.3 Personnel

The Vendor shall ensure that only qualified personnel perform the agreed services.

3. PAYMENT TERMS

3.1 Fees

The Company shall pay the Vendor the fees specified in the applicable Purchase Order.

3.2 Invoices

The Vendor shall submit invoices after successful delivery of products or completion of agreed milestones.

3.3 Payment Due Date

Approved invoices shall be paid within thirty (30) calendar days from the date of receipt.

3.4 Taxes

The Vendor is responsible for all applicable taxes unless otherwise stated in writing.

4. SERVICE LEVELS

4.1 Delivery

The Vendor shall meet all agreed delivery schedules.

4.2 Quality

Products and services shall conform to the agreed specifications.

4.3 Delays

The Vendor shall immediately notify the Company of any anticipated delay.

5. CONFIDENTIALITY

5.1 Confidential Information

The Vendor shall treat all Company information as Confidential Information.

5.2 Non-Disclosure

The Vendor shall not disclose Company information to any third party without prior written consent.

5.3 Survival

Confidentiality obligations survive termination of this Agreement for five (5) years.

6. DATA PROTECTION

6.1 Security

The Vendor shall implement appropriate administrative, technical, and organizational safeguards to protect Company data.

6.2 Breach Notification

The Vendor shall notify the Company of any security incident within twenty-four (24) hours of becoming aware of the incident.

7. INTELLECTUAL PROPERTY

7.1 Ownership

Unless otherwise agreed in writing, all deliverables specifically created for the Company shall become the exclusive property of NovaTech Solutions Pvt. Ltd. upon full payment.

7.2 Third-Party Materials

The Vendor shall obtain all necessary rights and licenses for any third-party materials included in the deliverables.

8. WARRANTIES

8.1 Performance Warranty

The Vendor warrants that all services shall be performed with reasonable skill, care, and diligence.

8.2 Compliance

The Vendor warrants compliance with all applicable laws and regulations.

8.3 Defects

The Vendor shall correct any defects identified within thirty (30) days after notification without additional cost.

9. LIABILITY

9.1 Vendor Liability

The Vendor shall be responsible for losses arising from negligence, fraud, confidentiality breaches, or failure to comply with this Agreement.

9.2 Limitation of Liability

Except in cases of fraud, willful misconduct, confidentiality breaches, or intellectual property infringement, neither party's total liability shall exceed the total amount paid under this Agreement during the preceding twelve (12) months.

10. TERMINATION

10.1 Termination for Convenience

Either party may terminate this Agreement by providing thirty (30) days' written notice.

10.2 Termination for Cause

The Company may terminate this Agreement immediately if the Vendor:

- Materially breaches this Agreement
- Fails to remedy a breach within fifteen (15) days after written notice
- Becomes insolvent
- Engages in illegal or fraudulent activities

11. FORCE MAJEURE

11.1 Events

Neither party shall be liable for delays caused by events beyond reasonable control, including natural disasters, war, pandemics, governmental actions, or major infrastructure failures.

11.2 Notification

The affected party shall promptly notify the other party of the force majeure event.

12. GOVERNING LAW

12.1 Applicable Law

This Agreement shall be governed by the laws applicable to the jurisdiction in which NovaTech Solutions Pvt. Ltd. operates.

12.2 Dispute Resolution

The parties shall first attempt to resolve disputes through good-faith negotiation.

If unsuccessful, disputes shall proceed to arbitration before litigation.

13. RELATED DOCUMENTS

This Agreement should be read together with:

- Master Service Agreement
- Non-Disclosure Agreement
- Information Security Policy

where applicable.

14. ENTIRE AGREEMENT

This Agreement, together with any Purchase Orders, Statements of Work, and applicable amendments, constitutes the complete agreement between the parties regarding the procurement of goods and services.

END OF DOCUMENT